

25STCV17247 25STCV17247

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-08-31

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Case Number: 25STCV17247 Hearing Date: August 31, 2026 Dept: 9

The Court hereby

distributes a tentative ruling for the Case Management Order. The parties are welcome to provide input and propose modification(s) to any aspect of the CMO at the Initial Status

Conference. If all parties submit on the

tentative CMO prior to the commencement of the August 31, 2026 ISC, the Court

will adopt the tentative CMO, and the parties need not appear. However, if there is any matter that any

party would like to discuss, including any proposed change to this tentative

CMO, that party should not submit on this tentative but instead appear at the

ISC to raise the issue. To avoid a

failure to appear, please make sure to check in with Department 9 court staff

and wait for the case to be called unless you receive notification that all

parties have submitted on the tentative CMO.

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES

CARLOS

AVILA v DIGNITY HEALTH, et al., 25STCV17247

[TENTATIVE] CASE MANAGEMENT

ORDER

This action has been designated as

complex pursuant to CRC 3.400(a), and thus requires exceptional judicial

management. All provisions of this CMO are deemed necessary to carry out the

purposes of Rule 3.400(a), and to promote effective decision-making by the Court. They are based upon individual consideration of this complex action, including the Status Conference Reports previously filed by the parties.

1.

Potential PAGA Claim: The operative complaint currently does not include any claim for civil penalties pursuant to Labor Code section 2699 (PAGA penalties). Plaintiff's counsel has indicated that Plaintiff intends to amend his complaint to add a claim for PAGA penalties. Plaintiff's operative pleading should be confirmed before Defendant responds. The court hereby lifts the stay for purposes of granting Plaintiff leave to file an amended complaint adding a PAGA claim. If Plaintiff wishes to add a PAGA claim for penalties to the complaint, then by no later than September 21, 2026, Plaintiff must file and serve an amended complaint adding a claim for PAGA penalties. If Plaintiff fails to file an amended complaint adding a PAGA claim by this deadline, then the original complaint shall serve as the operative complaint, and if Plaintiff thereafter wishes to add a PAGA claim, Plaintiff will have to file a noticed motion seeking leave to do so.

2.

Dismissal of Certain Defendants: The Court has granted Plaintiff's request to dismiss without prejudice Defendants Dignity Health Hospital – Mercy Medical Center, Mercy Medical Center – Merced, Catholic Health Initiatives, and Mercy Medical Center Merced Foundation. If Plaintiff no longer intends to pursue claims against these Defendants, then Plaintiff should delete these Defendants from the caption of any amended complaint.

3.

Clarification of Class Allegations in Amended Complaint:

Defendant points to certain inconsistencies in the complaint as to whether Plaintiff seeks to represent exempt or non-exempt employees. As the Court is granting leave to amend the complaint, Plaintiff should clarify the class allegations in the amended complaint so that the nature of the class is clear and consistent throughout the amended complaint.

4.

Mediation: The

parties are ordered to meet and confer regarding their willingness to participate in private mediation, and if agreeable to all parties, the parties may schedule a mediation. The parties are further ordered to file a Joint Status Report Re: Mediation Efforts, including whether the Parties have agreed to mediate, the identity of any mediator they may have selected, and the date of any mediation they may have scheduled, by no later than October 23, 2026. A Non-Appearance Case Review Re Mediation Efforts is set for October 30, 2026 at 8:30 AM, Department 9. If the parties agree to a voluntary, informal exchange of discovery prior to mediating, the Court encourages (but does not require or order) the parties to include a custodian's declaration with each production of discovery so that if the mediation is unsuccessful, the parties will have declarations to authenticate the documents already produced.

5.

Applicable Arbitration Agreement(s): The Parties are unaware of any relevant arbitration agreements and/or class action waiver clauses.

6.

Defendant's Responsive Pleading: The Court hereby lifts the stay to permit Defendant to file and serve a Responsive Pleading to the operative Complaint. Defendant must file and serve a Responsive Pleading by no later than October 23, 2026.

Before filing any demurrer or other motion, the moving party must contact the Court Staff in Department 9 when ready to file the moving papers to obtain a hearing date and a briefing schedule.

The Court sets a Non-Appearance Case Review Re: Filing and Serving of Defendant's Responsive Pleading for October 30, 2026, 8:30 AM, Department 9.

7.

Phased Discovery. Discovery shall be phased. Discovery will be phased with the stay lifted once Defendant files and serves an answer or, if applicable, after the Court rules on any pleading challenge. At that time, the Court will permit class certification discovery only. Merits-based discovery will be allowed only after the Court rules on Plaintiff's anticipated class certification motion. If there is a dispute concerning whether a given discovery request is certification or merits-based, the parties are to request an informal discovery conference through CaseAnywhere or other electronic

bulletin. If the parties schedule a mediation to occur on or before March 1, 2026 and if the parties wish to extend the stay on formal discovery beyond Defendant's filing of an answer, the parties may file a stipulation and proposed order extending the stay on formal discovery until completion of mediation, and the Court will likely approve such stipulation.

8.

Class list discovery.

The decision in *In Re Insurance Installment Fee cases* (2012) 211 Cal.App.4th 1395, 1426-1429, held that the notice procedure prescribed by the trial court and followed by the defendant was necessary to protect privacy rights under the California Constitution.

Therefore, upon the Court's lifting of the stay on class certification discovery, the parties shall use the procedure described in *Belaire-West Landscape v Superior Court* (2008) 149 Cal.App.4th 554 to notify putative class members, as described in the applicable paragraph of the currently operative complaint, giving them the opportunity to opt out. The parties must share the cost of the procedure equally.

a. Plaintiff

is to take the lead and prepare a proposed letter to be sent out by the agreed-upon third party administrator.

The parties must discuss and settle upon a final version.

b. The

letter must be written using the administrator's letterhead, not that of any party.

c. The

defense must turn over the contact information consisting of name, address, phone number, and email address (if available) to the third-party administrator.

d. In the

event the putative class list is greater than 400 people, the administrator must randomly select a sample of no more than 400. The contact information for those persons who did not opt out must be turned over to the plaintiff.

9.

Payroll Records Discovery. Responses to any payroll record discovery requests must be uniquely numbered and redacted so that putative class member's identifying information, i.e., name, social security numbers, etc. are not revealed.

10.

Protective Order.

Parties are alerted that model protective orders may be found at Los Angeles Superior Court website at <http://www.lacourt.org/division/civil/CI0043.aspx>. The parties are encouraged to use these model orders as shown, or if modified, as a template for the modified order. A redlined courtesy copy must be posted on the e-service bulletin board and lodged with the court at the time of filing. The parties must use the redlined version to identify any changes proposed to the model order.

11.

E-service & E-filing. Electronic service is not the same as electronic filing. The parties have agreed, and the Court has signed an order authorizing Case Anywhere as the e-service to be used in this case. Argument must not be posted on the bulletin board. For information on electronic filing in the Complex Courts, please refer to <https://www.lacourt.org/division/efiling/efiling2.aspx> and <http://www.lacourt.org/division/efiling/pdf/ComplexefilingFAQs.pdf>.

a. The

parties should be aware that if they submit a proposed order, then if and when the Court approves the order, the final signed order will be electronically returned to the Electronic Filing Service Provider (EFSP). After lodging a proposed order, the parties must frequently monitor and check with their EFSP because the final, signed order will not be automatically uploaded to CaseAnywhere or any other electronic bulletin board.

12.

Hearing Dates and Briefing Schedule for Motions: Department 9 does not use the Los Angeles Superior Court online Court Reservation System (CRS) to set motion hearing dates. To request a hearing date and briefing schedule for any and all motions (other than motions in limine), the moving party must call the Court Staff in Department 9 when ready to file the moving papers. The first page of the Notice of Motion must clearly set forth the hearing date and briefing schedule obtained

from the Court. Failure to file and serve moving papers within 1 court day of obtaining the briefing schedule and hearing date may result in the Court vacating the hearing date. At the trial setting conference, the Court will specially set a briefing schedule for all motions in limine, which are generally heard at the Final Status Conference.

13.

Class Certification Motion. The Court hereby sets the deadline for Plaintiff to file and serve any Motion for Class Certification as August 31, 2027. Plaintiff is reminded that Plaintiff's brief must contain a trial plan. The trial plan MUST be filed as a separate brief. The Court sets a Non-Appearance Case Review for September 7, 2027, 8:30 AM, Department 9.

14.

Discovery conferences. Participation in an informal discovery conference is not a prerequisite to filing a motion to compel further or other discovery motion in Department 9. However, the Court strongly encourages informal discovery conferences as a more efficient and cost effective alternative to resolve discovery disputes without unnecessary motion practice. The Court will likely consider the parties' voluntary participation in an informal discovery conference or other similar efforts when subsequently assessing a party's request for discovery sanctions. Any party may post a message on the electronic bulletin board to request an informal discovery conference. The Court will either reply to the message or issue a minute order setting the conference. A party's request for or voluntary participation in an informal discovery conference does not extend the deadline to file and serve a timely motion to compel further responses. If the parties wish, they may negotiate and stipulate to a mutually agreeable extension in writing. Because informal discovery conferences are informal, no court reporter or audio recording is permitted.

15.

Potential Related Cases. As soon as Counsel become aware of any potentially related case(s), including any class action involving overlapping claims or any PAGA case involving the same representative plaintiff, Counsel are ordered to file and serve a Notice of Related Case in the instant case and in the potentially related case(s) pursuant California Rule of court Rule 3.300. This is a continuing obligation

on both Plaintiffs and Defendants while this case is pending. In particular, Defendant is ordered to file and serve on all parties a Notice of Related Cases in the instant case and also in each of the cases listed in paragraph 7 of the Joint Initial Status Conference Response Statement by no later than October 23, 2026. The Court hereby sets a Non-Appearance Case Review re filing of Notice of Related Cases for October 30, 2026 at 8:30 am in Department 9.

16.

Settlement.

File a Notice of Settlement on Judicial Council form CM-200, a mandatory form.

a. Consider using the form wage and hour settlement agreements now available on the court's website at <https://www.lacourt.org/forms/all> – "Civil Forms" section. With input and unanimous consensus from an Ad Hoc Wage and Hour Committee, the court posted: (1) a form class action settlement agreement, (2) a form class action/PAGA settlement agreement, (3) and a form PAGA settlement agreement. Using these forms should cut down on attorney negotiation time and reduce the lag time between a successful mediation and execution of a long form agreement. Filing a motion that is based on a form agreement and includes a redlined copy identifying modifications will also expedite the court's review process and help reduce the current backlog on hearings.

b. If settlement includes dismissal of class action claims (such as a PAGA only settlement or an individual settlement), then Plaintiff must comply with CRC 3.769 and 3.770 in order to obtain dismissal of class claims. Do NOT use Judicial Council Form Civ-110, Request for Dismissal.

Plaintiff

is ordered to download (1) the instant signed order from the Court's website, (2) the minute order for today, and (3) the signed order authorizing electronic service provider, to give formal notice of each of these to all other parties, and to file proof of service of such within five (5) days.

IT IS SO ORDERED.

DATED: August 31, 2026

ELAINE
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Judge
of the Superior Court